

CONSTITUTIONAL DEVELOPMENT

TERMS OF REF.	PREAMBLE	MY COMMENTS	SUBMISSION / RECOMMENDATION
PREAMBLE	AQ : We, the members of the African Royal Rainbow Congress, united in our pursuit of a prosperous, equitable, and just society, do hereby adopt this Constitution and Policy Document as the foundation of our organization. MB : We, the members of the African Royal Rainbow Congress, united in our quest for a new era of leadership, inclusivity, and sustainable progress, do hereby adopt this Constitution as the foundation of our party. AQ. : We, the members of the African Royal Rainbow Congress, united in our quest for a new era of leadership, inclusive,	All is well. May simple delete the word (policy) we are currently building foundation for policies that we will develop in the long run. Reconcile the preambles and come up with single , holistic and integrated preamble.	PREAMBLE ● It is your prerogative to design. All of them speak our common interest. ● The Acronym as such should be retained

and

sustainable progress, do hereby adopt this Constitution as the foundation of our party.

MB : The name of the party shall be the African Royal Rainbow Congress.

AQ : The name of the organization shall be the African Royal Rainbow Congress, hereinafter referred to as the "ARRC"



	PG : When we look at article 4.1 is like we focusing more in Africa while we based in South Africa. Maybe we can call us South African Royal Rainbow Congress (SARRC)		For me , the name African Royal Rainbow is fine.
ARTICLE 1	LIABILITY: No input on this aspect	The organization has its own right of existence, independently of its members or leaders. As such it is liable for its own affairs and activities.	1. LIABILITY ARRC Shall: 1.1. Exist in its own right , separately from its Leaders and or members 1.2. Be able to own property and other possessions 1.3. Be able to sue and be sued in its own name
ARTICLE 2	AIMS & OBJECTIVES , VISION & MISION: MB: 2.1 Justice, Unity, and Empowerment To promote the values of justice, unity, and empowerment in South African politics. 2.2 Platform for Voices To provide a platform for the voices of all South Africans,	Those constitute the yardstick or criteria against which we judge our relevance and monitor our performance or evaluative and reviewal purposes . These are our mirrors. They justify our existence	2. AIMS & OBJECTIVES , VISION & MISION: 2.1.AIMS & OBEJCTIVES 2.1.1.To promote Justice, Unity, and Empowerment 2.1.2.To provide a platform for the voices of all South Africans, regardless of race, gender,



regardless of race, gender, or socio-economic background. 2.3 United, Prosperous, and Peaceful South Africa To work towards a united, prosperous, and peaceful South Africa. 2.4 Economic Growth and Sustainability To promote economic growth, social justice, and environmental sustainability. AQ : Our Vision A united, prosperous, and peaceful South Africa, where all citizens have equal opportunities to thrive. MB : Our Vision A united, prosperous, and peaceful South Africa, where all citizens have equal opportunities to thrive. AQ : Our Mission The African Royal Rainbow Congress is committed to: 1. Promoting economic growth and development benefiting all South Africans.	as an organization.	or socioeconomic background. 2.1.3. To create an enabling environment in which every South African citizen can reach his or her full potential. 2.2. OUR VISION A united, prosperous, and peaceful South Africa, where all citizens have equal opportunities to thrive. 2.3. OUR MISSION 2.3.1. Promoting economic growth and development benefiting all South Africans. 2.3.2. Fighting poverty, inequality, and unemployment 2.3.3. Protecting and promoting rights of all South Africans. 2.3.4. Building a united, prosperous, and peaceful South African
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2. Fighting poverty, inequality, and unemployment. 3. Protecting and promoting rights of all South Africans. 4. Building a united, prosperous, and peaceful South Africa. ND : Our charter will direct every ARRC government to realize the vision by focusing on: 1. Building a fair society that enables the south Africa people to realise their full potential. 2 supporting the hardworking. Freedom - loving people of our country who want to live and raise their families in safe communities, support each other, work hard, play by the rules, reap the rewards for their efforts and build a country where all of us regardless of our backgrounds and make progress together. 3 Ensuring the maximum amount of freedom consistent with law and order. [REDACTED] opportunity. [REDACTED] A system of social security to protect people from extreme		[REDACTED] interaction with organization pursuing similar interests [REDACTED] discrimination [REDACTED] Women and youth through structured programs [REDACTED] successfully their current stages [REDACTED] children , adults , aged and disabled to to celebrate their stages and develop full potential [REDACTED] interests of South Africa
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	poverty		
2.4.	VALUES UNDERPINNING THE ABOVE AIMS & OBEJECTIVES MB. : Core Values Our party is built on: 1. Faith: Importance of faith and spirituality in guiding actions and decisions. 2. Integrity: Upholding highest standards of integrity, honesty, and transparency. 3. Accountability: Being accountable to the people of South Africa and constituents. 4. Justice: Promoting justice, equality, and fairness for all South Africans. 5. Unity: Importance of unity and inclusivity, recognizing diversity.	Our values will determine how we journey or travel towards where we want to be. It is also through these values (acted upon or reflected)that South Africans will decide whether the join us. Also , deviating form these values will cost us. This means we have to be consistent in applying and defending them. So spelling them out clearly will help us. Hence the need for Code of conduct or ethics Code for that matter. We do not want our members to be victims of pick & chose rules or undefined principles.	2.4. VALUES UNDERPINNING THE ABOVE AIMS & OBJECTIVES 2.4.1.Faith & UBUNTU centred 2.4.2.Mandate & Accountability 2.4.3.Tranperancy & Openess 2.4.4.Inclusivity & Tolerance 2.4.5.Effectiveness & Efficiency 2.4.6.Prioritization & Flexibility 2.4.7.Equality & Social Justice 2.4.8.Respect & Human Dignity 2.4.9.Punctuality & Consistency 2.4.10.Excellence & Professionalism : Upholding high standards in all our practices 2.4.11. Honesty



ARTICLE 3	MEMBERSHIP MB : 3.1 Eligibility Membership of the party shall be open to all South African citizens who share the party's values and objectives. MB : 3.3 Membership Categories Membership categories shall include ordinary members, youth members, and honorary members. AQ : Membership in the ARRC shall be open to all Africans who share the organization's vision, mission, and core values. ND : Apply in writing to become a member of the party, by signing the prescribed membership of the party	Similarly as we are South African citizens , eligible for voting in SA democratic elections , our members too must derive from our constitution. I note the issue of categories as proposed(honorary) membership , but must be defined and put into context. To be noted also is the issue of age in our membership and membership fee	3. MEMBERSHIP 3.1. Membership shall be open to all South Africans (18 Years & Beyond) 3.2. The NEC will will from time to time determine membership fee 3.3. Membership shall be valid for one year at the expiry of which a member will renew 3.4. The NEC shall designate honorary membership to certain individuals 3.5. The criteria for honorary membership shall be defined and communicated.
ARTICLE 4	ELIGIBILITY FOR OFFICE ● No input on this aspect	It is also important to clarify (define properly) or form the start we do not at the last moment have in our ranks persons with pending criminal records or state of health that may impede our pursuit of our aims and objectives.	4 ELIGIBILITY FOR OFFICE 4.1. Unless otherwise specified , any member in good standing shall be illegible for election into office.

ARTICLE 5	AUTHORITY, JURISDICTION & APPLICATION OF THIS CONSTITUTION ● No input on this aspect	Just like any institution operating at a professional level or individual for that matter , the scope of practise is matters for the realization of our vision , mission. We stay on our lane.	5. AUTHORITY, JURISDICTION & APPLICATION OF THIS CONSTITUTION 5.1. This constitution binds the Congress , NEC , Provincial Congresses , PEC , Regional Congresses , Municipal constituencies or wards and any formation of ARRC as well as individual members and furthermore applies to all decisions and acts in relation to ARRC Governance and practices. 5.2. The application of this constitution is limited to ARRC affairs and members
ARTICLE 6	STRUCTURES OF ARRC MB : Article 4: Leadership and Governance 4.1 National Executive Committee (NEC) The party shall be led by an NEC, composed of the President, Deputy President, Secretary-General, and other elected officials. 4.2 NEC Responsibilities	Structures are very important as they give mandate and systematic operation with clear accounting protocols , be Good structural relations promote efficiency and proper monitoring and evaluation mechanisms. If there is structural chaos	6 STRUCTURES OF ARRC The ARRC will discharge its functions through the following organs : 6.1. The Congress 6. 2. The NEC 6.3 . The Provincial Congresses



	The NEC shall be responsible for making key decisions, setting policy, and overseeing the party's operations. 4.3 Provincial and Local Structures The party shall also have provincial and local structures, responsible for implementing party policy and programs. ND : General structure of the party. (1).the party consists of members who are organized in and function democratically through the organisational formations of the party. The organisational formation of the party are set out in this constitution, and consist of formations at National, provincial, regional, constituency and local level. At local level the party must establish branches with democratically elected branch committee, and strive to establish a branch in every ward within the republic of South Africa Branches are the basic organizational formations of the party and every member of the party must be a member of a branch and must exercise his or her right and privileges as a	there will be crisis which will eventually lead to disaster and eventual collapse of the organization. It is also here that we see political ill- discipline(none adherence to protocols)	6.4. PEC 's 6.7. The Regional Congresses 6.8. The REC'S 6.8 . The Branch Meetings 6.9. The BEC'S 6.10. OTHER ORGANS THAT MAY BE ESTABLISHED : ● The members Court ● The Electoral Commission / College ● Committee for Strategic & Technical Aspects ● And many organs as may be established 6.11. COMPOSITION OF THE NEC NEC Shall be Composed as Follows : ● The President ● The Deputy President ● The Chairperson ● The Deputy Chairperson
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	member through his or her branch and it's elected representative and delegates. Membership and Branches PG : My concern is article 5: leadership and Government. I think in our policy we must also add the Provencial Executive Committee (PEC) as 5.2 and regional structures, we know that the structure is the one that elect the Provincial leadership		● The Secretary ● The Deputy Secretary ● The Finance Officer / Treasurer ● The Spokesperson or Communications officer ● <u>The Projects & Campaigns Coordinator</u> : Two Pillars under this desk : - Developments & Empowerment Pillar - Soliderity Care & Support Pillar (These Pillar Heads are not Elected but Appointed by the Officer on the Advice of the NEC.
	ELECTION OF LEADERSHIP ● No input on this matter	The characterization of democracy as " government of people by the people" has implications for legitimacy. How leadership emerges gives recognition and credibility even to donors and potential members. Also this has implications for intern processes	7. ELECTION OF LEADERSHIP 7.1. Leaders shall be elected in congresses or branch meetings meant for this purpose 7.2. The NEC Shell develop guidelines to for free and fair elections at all levels



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7.3	TERM OF OFFICE ● No input on this matter	We do not have to be “ Kabila” type of leaders imposing themselves on people. Mandate must be renewed after expiry of term. This will ensure healthy internal democracy. So we need to define durations.	TERM OF OFFICE NEC ● The Term of office shall be five (5) years at the expiry of which a member may be reelected ● No member of the NEC may elected for more than two (2) consecutive years. PEC ● The term of office for PEC s for PEC’s Shall be four (4) years at the expiry of which a member may be reelected. ● No member of the PEC may be elected for more than two (2) consecutive years REC ● The term of REC’s shall be three (3) years at the expiry of which a member may be reelected

			- No REC member may be reelected for more than two (02) consecutive terms BEC - The term of BEC's be two (2) years
8.	INDIVIDUAL & COLLECTIVE RESPOSIBILITES OF OFFICE BAREARS No input on this matter	As an institution we will be having individual and collective responsibilities. Both important for steering the ship. At the same time each portfolio holder has his or her responsibilities for which he or she is evaluated and monitored. The scope and mandate within which every office bearer operates ensured professionalization of our internal political democracy .	8. INDIVIDUAL & COLLECTIVE RESPOSIBILITES OF OFFICE BEARERS 8.1. The President : Is the Chief Accounting Officer of the NEC I LEAVE LEAVE NEC TO COMPLET IF NOT I WILL DO MSELF
ARTICLE 9	DECISION MAKING AND PROCEDURE OF MEETINGS MB : Article 5: Decision-Making Processes 5.1 Democratic and Transparent Decision-making shall be democratic, transparent, and inclusive.	Key to our internal democracy is decision making processes. Indeed voting in certain matters must be the last resort as consensus is very	9. DECISION MAKING AND PROCEDURE OF MEETINGS - Voting shall be the last resort - Decisions make be through consensus



	5.2 Consensus or Majority Vote The NEC shall make decisions through consensus or majority vote. 5.3 Provincial and Local Decision-Making Provincial and local structures shall also make decisions through democratic processes.	important . The other principles are already alluded to in article 2 as founding values.	
ARTICLE 10.	NEC MEETINGS ● No input on this matter	Scheduling meetings ensures professionalization of intern democracy. This gives credit to decisions taken “ not behind closed doors “ This also limit chances for factions to emerge. The emergence of such factions is a result of others challenging decision taken in their absence. Scheduling meetings also ensures proper discipline and justifies cessation of office in case an office bearer fails to comply.	10.1. Notices : ● Notices together with written agendas shall be given or sent to members at least two(2) weeks before any meeting to the organization ● Minutes of the meeting shall be kept safe and always available to members electronically or as hand copies. 10.2 NEC Meetings ● Ordinary meetings of the NEC Shall be held on a quarterly basis ● The Secretary shall NEC members of in writing of the agenda , date time and venue of meeting

			10.3. Special Meetings ● Special meetings of the NEC shall be held on instruction of the president at a request of at least five members of the NEC 10.4. Quorum of NEC Meetings
ARTICLE 11	VACATION OF SEATS BY OFFICE BEARES ● No input on this matter	We are not here to victimize each other through what whatever means for certain motives. Officers have to vacate seats through properly established grounds or through their own choice or circumstance beyond their control.	11. VACATION OF SEATS BY OFFICE BEARERS ● Office bearers who fails to attend three (3) consecutive meetings of the NEC excluding special meetings , shall cease to hold office with immediate effect ● If an office bearer voluntarily terminates membership or seat by way of resigning ● If the office bearer is found guilty by a properly constituted and fully representative (internal representation)disciplinary committee



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			members' court , where such misconduct is related to to the member's duties as an office bearer or where a member has been expelled , or suspended by the members court. ● An office bearer shall vacate seat on he ground of incompetence ● On vacation of seat , no office bearer shall claim anything from the ARRC. ● Office bearers shall vacate seats when their time expires
ARTCLE 12	FILLING OF VACANT SEATS (NEC,PROVINCE ,LOCAL BRANC H) ● No input on this matter	This is an important dimension of internal democracy. There is no pick and choose like in a spaza shop. Processes of filing vacant seats must be clearly defines to avoid contradictions and conflict of interest.	
ARTICLE 13	MEMBERS' COURT	Instances of misconduct or	13. MEMBERS' COURT



	MB : Article 7: Code of Conduct 3.2 Code of Conduct Members shall be expected to uphold the party's constitution and code of conduct. 7.1 Integrity and Honesty Members of the party shall be expected to uphold a code of conduct that promotes integrity, honesty, and respect for others. 7.2 Code of Conduct Development The code of conduct shall be developed and adopted by the NEC. 7.3 Disciplinary Action Members who breach the code of conduct shall be subject to disciplinary action.	what constitutes misconduct need to be defined clearly and properly. Furthermore disciplinary processes or corrective measures must emerge from a recognized structured (constitutional) This constitutional basis gives mandate for disciplinary processes and procedures.	● There shall be a member's court which shall investigate and hear charges of misconduct
ARTTICLE 14	COMPOSITION OF MEMBERS' COURT ● No input on this matter	Our members cannot be disciplined by person from nowhere. Status and capacity of those participating must be defined. The composition of that body too must be	14. COMPOSITION OF MEMBERS' COURT ● The members court shall be composed as follows : - The Chairperson of the court



		inline with our intern democracy and human rights aspects.	- The Prosecutor - Representative of the offender - Secretary of the court
ARTICLE 15	THE DISCIPLINARY APPEALS COURT ● No input on this matter	Democracy allows space and platforms for persons to appeal in case they are not satisfied or fell victimized by by unfair processes. We should allow and define such bodies and processes	15. THE DISCIPLINARY APPEALS COURT ● There shall be an appeals court is a member disputes the judgement of the Disciplinary court ● The appeal shall be lodged within fourteen (14)days of the judgement court ● The appeals court shall not be more than four persons who were not present during the judgement ● The decision of the Appeals court shall be final
ARTICLE 16	ARRC SUPPORT STAFF ● No input on this mater	In some instances or as the organization grows with responsibilities needing some kind of timelessness or fixed term contract.	16. ARRC SUPPORT STAFF ● ARRC Support staff shall be appointed when need arises



		These must be defined in our constitution.	● The Chief Administrator shall be appointed On a full time , fixed term basic to do the dally administration of ARRC
ARTICLE 16	ARRC LOGO , COLOURS AND SYMBOLISM MB: Article 1: Name and Symbolism 1.1 Name The name of the party shall be the African Royal Rainbow Congress. 1.2 Logo The party's logo shall feature a golden yellow crown, representing royalty, with two white stars, symbolizing the unity of black and white South Africans, set against a royal blue background. 1.3 Mascots The party's mascots shall be the Big 5 of South Africa (lion, leopard, rhinoceros, elephant, and Cape buffalo), representing strength, resilience, and diversity. Interpretation of Logo	This is our brand. Very much attractive. We need to take care of it and protect it.	16.ARRC LOGO , COLOURS & SYMBOLISM 16.1.Logo The party's logo shall feature a golden yellow crown, representing royalty, with two white stars, symbolizing the unity of black and white South Africans, set against a royal blue background. 16.2.Mascots The party's mascots shall be the Big 5 of South Africa (lion, leopard, rhinoceros, elephant, and Cape buffalo), representing strength, resilience, and diversity. 16.3.Interpretation of Logo The logo holds deep symbolism, representing:



	The logo holds deep symbolism, representing: - Colonial history and unity - Social coliseum and unity - Sky, oceans, and spirit of the South African people - Strength, resilience, and diversity - Future, new generation, and direction - Rich cultural heritage - Royals of Africa, economy, and youth		- Colonial history and unity - Social coliseum and unity - Sky, oceans, and spirit of the South African people - Strength, resilience, and diversity - Future, new generation, and direction - Rich cultural heritage - Royals of Africa, economy, and youth
ARTICLE 17	DEFINITION OF TERMS ● No input on this matter	It is important to define terms to avoid ambiguity and misinterpretation of concepts in politics, just as it is in law.	I LEAVE FOR NEC, IF NOT I WILL
ARTICLE 18	AMENDMENT TO THIS CONSTITUTION MB : Article 8: Amendments 8.1 Amendment Process This Constitution may be amended by a two-thirds majority vote of the NEC. 8.2 Effective Date	There will be times when we feel that what we wrote in this constitution prevents us from doing wrong or right as we wish. In such circumstances we may be tempted to override certain clauses or articles	18.AMENDMENT TO THIS CONSTITUTION 18.1. This Constitution may be amended by a two-thirds majority vote of the NEC.called for his purpose.

	Amendments shall come into effect immediately, unless otherwise specified. AQ : Article 8: Amendments 8.1 Amendment Process This Constitution may be amended by a two-thirds majority vote of the NEC.	by day or night. Democracy does not allow that. Hence he need for processes of amendment to be defined.	
ARTICLE 19	PROMULGATION MB : Article 10: Final Provisions 10.1 Effective Date This Constitution shall come into effect immediately upon adoption.	Like an act in Law , once promulgated it takes effect and has a binding status with immediate effect	19. PROMULGATION 19.1. Once promulgated this constitution will nullify all existing documents will have a binding status.
ARTICLE 20	DISSOLUTION OR CLOSING DOWN MB. : Article 9: Dissolution 9.1 Dissolution Process The party may be dissolved by a two-thirds majority vote of the NEC. 9.2 Asset Distribution In the event of dissolution, the party's assets shall be distributed	Impermanent are all things in this world so our lives are too as human beings. That is why we make wills. So is he will of ARCC when its life comes to an end to avoid fighting and looting of its assets or property.	20 . DISSOLUTION 20.1. The party may be dissolved by a two-thirds majority vote of the NEC, in a meeting called for this purpose 20.2. In the event of dissolution, the party's assets shall be distributed to a charitable organization or organizations.



	to a charitable organization or organizations.		
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ADOPTION :

Mover : _____

Seconder : _____

Counter : **None**

President's Signature	Chairperon	Secretary